

Factor k. PPO (23-005907-PP)

Favors Defendant/Mother

Factor l. Concerns found to be a combination of all testimony and evidence.

Plaintiff's inability to see how his behavior impacts the child.

Plaintiff's inability to see how his behavior impacts the Defendant.

Plaintiff's behavior at work and complaints filed by five (5) co-workers leading to his termination.

The Proposed Judgment granted the following:

Sole Legal and Sole Physical to Defendant/Mother finding "no foreseeable way that these parties can cooperate together to address legal custody concerns" and "by clear and convincing evidence".

Parties to communicate via AppClose.

Plaintiff/Father granted Parenting Time on alternating weekends from Friday at 5:30pm until Sunday at 5:30pm during School Years beginning September 1st of each year and alternating weekend from Friday at 5:30pm until Tuesday at 5:30pm during Summers beginning the first alternating weekend after school discharges for the summer and continuing until September 1st.

Exchanges at City of Muskegon Police Department.

Both parties may utilize third-parties to conduct parenting time exchanges. There shall be no communication during parenting time exchanges.

Alternating Holiday Scheduled was provided.

Defendant's Objection to Ex Parte Order for Custody, Parenting Time and Child Support following Facilitative Information Gathering Conference Granted. Child Support to be recalculated.

July 30, 2024:

Plaintiff filed Objection to prepared/proposed Judgment.

Plaintiff objected to the finding that his Motions filed on July 16, 2024 were frivolous and referenced the following: MCL 722.27a, MCL 722.23(k), MCL 722.23(l), MCL 722.27(1)(c), MCL 722.27 and MCL 722.23(f) providing his oppositions to the Courts findings and included several pages (13-177) of what he believed to be documented evidence in support of his objection.

July 31, 2024:

The Court found the filing to be concerning as it contained personal information regarding the child that should not be in a public file and the documentation should have been introduced during Court proceedings, not attached to pleadings. It appeared the Plaintiff was continuing to argue his case.

An Order was entered. The Court found the Plaintiff did not follow the Courts Rule under MCR 2.602(B)(3) and pages 13-177 were to be returned to Plaintiff under MCR 2.114.

August 16, 2024:

Plaintiff filed a Motion for Reconsideration of Custody and Parenting Time.

In the Motion, Plaintiff questioned "Why Am I, as the Plaintiff, Being Treated Like aCriminal?" and reiterated his position for Joint Custody with equal Parenting Time.

Plaintiff acknowledged his filing was one day late and still requested reconsideration.